



OFFICE OF THE POLICE COMMISSIONER

ONE POLICE PLAZA • ROOM 1400

May 6, 2009

Memorandum for: Deputy Commissioner, Trials

Re: **Sergeant Zenobia Clarke**
Tax Registry No. 903144
Military and Extended Leave Desk
Disciplinary Case No. 83813/08

CHAN

The above named member of the service appeared before Assistant Deputy Commissioner David S. Weisel on October 6, 2008 and was charged with the following:

DISCIPLINARY CASE NO. 83813/08

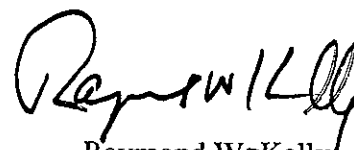
1. Said Sergeant Zenobia Clarke, assigned to the 108 Precinct, on or about and between July 20, 2007 and July 23, 2007, was wrongfully and without just cause absent from her residence without the permission or authority of said Officer's District Surgeon and/or Medical Division Sick Desk Supervisor and was out of the permissible resident counties without the approval of the Chief of Personnel.

P.G. 205-01, Page 2, Paragraph 4 REPORTING SICK/PERSONNEL MATTERS
P.G. 205-01, Page 6, Paragraph 1 REPORTING SICK/PERSONNEL MATTERS

In a Memorandum dated January 20, 2009, Assistant Deputy Commissioner Weisel accepted the Respondent's Pleading Guilty to the sole Specification. Having read the Memorandum and analyzed the facts of this matter, I approve the finding, but disapprove the recommended penalty.

Although it was determined that the Respondent was not abusing her sick leave privileges and had attempted to have a third-party provide medical documentation to the Medical Division, she failed to ensure that said documents were in-fact received by Medical Division personnel prior to her leaving out of state for several days. As such, she was wrongfully out of her residence, and had traveled out of the state, while on Sick Report.

As a veteran member of the service and a supervisor, the Respondent should have ensured that the requested and necessary documents were properly received by the Medical Division, especially since it was she who had sought to be returned to full-duty status. Therefore, a greater penalty, consisting of the forfeiture of eight (8) vacation days, is merited.


Raymond W. Kelly
Police Commissioner



POLICE DEPARTMENT

January 20, 2009

MEMORANDUM FOR: Police Commissioner

Re: Sergeant Zenobia Clarke
Tax Registry No. 903144
Military and Extended Leave Desk
Disciplinary Case No. 83813/08

The above-named member of the Department appeared before me on October 6, 2008, charged with the following:

1. Said Sergeant Zenobia Clarke, assigned to the 108 Precinct, on or about and between July 20, 2007 and July 23, 2007, was wrongfully and without just cause absent from her residence without the permission or authority of said Officer's District Surgeon and/or Medical Division Sick Desk Supervisor and was out of the permissible resident counties without the approval of the Chief of Personnel.

P.G. 205-01, Page 2, Paragraph 4 – REPORTING SICK/PERSONNEL MATTERS
P.G. 205-01, Page 6, Paragraph 1 – REPORTING SICK/PERSONNEL MATTERS

The Department was represented by Daniel Maurer, Esq., Department Advocate's Office, and the Respondent was represented by Philip Mellea, Esq.

The Respondent, through her counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent, having pleaded Guilty, is found Guilty as charged.

COURTESY • PROFESSIONALISM • RESPECT

SUMMARY OF EVIDENCE IN MITIGATION

The Respondent testified that she was appointed to the Department on August 30, 1993, and has held the rank of sergeant since January 30, 2006. She was assigned to the 108 Precinct in, she believed, February of 2006.

On or about July 6, 2007, the Respondent testified, she was granted a medical leave as a result of a miscarriage. She explained that a leave granted under this circumstance is for two weeks. The Respondent further testified that on July 18, 2007¹, she sought to be returned to full duty status and telephoned the Medical Division. She said that she reached the Medical Division's voice mail and left a message indicating her request to return to full duty. She received a call back the following day, July 19, 2007. The officer from the Medical Division who returned her call acknowledged the request to be returned to duty, but said that she would have to "check with someone to see the process" and get back to her. The Respondent said the officer called her back later that day and said "it's no problem, you can return back to duty if your doctor faxes over a letter saying you are able to be returned back to duty. We need a fax proving" the Respondent's ability to return to work.

The Respondent testified that she called her obstetrician, Dr. Leslie Farrington of [REDACTED] Center. Farrington was not in the office but the Respondent informed the secretary of what she was requesting. The Respondent then telephoned the Medical Division to tell them Farrington's office would be faxing the necessary documentation to them.

The Respondent testified that she was seeking to be returned to full duty on July 19, 2007. Upon speaking to the Medical Division on that date, she learned that they had not received the fax from Farrington's office. The Respondent told the Medical Division that she

¹ The transcript reads that the Respondent stated that she called the Medical Division on January 18, 2007. However, the Court subsequently clarified the correct month to be July and the record is otherwise consistent throughout.

would call Farrington's office and ask them to expedite the letter. On that day, July 19, 2007, the Respondent had two conversations with her doctor's office and three with the Medical Division. She testified that it was her understanding in speaking with the Medical Division that she would be returned to full duty as soon as they received the letter from Farrington. The Respondent said she was told, "You can be returned, just send the fax over basically is what she said."

The Respondent said that she received a phone call from her husband the following Saturday, July 21, 2007. He told her that the Medical Division was "looking for you around Saturday morning because they came and left a card or left a voice mail." The Respondent testified that because it was the weekend, she could not contact anyone to find out what happened. She was told by the Medical Division that she had to deal with the Pregnancy Medical District, which was not open until Monday.

On Monday, July 23, 2007, the Respondent called Farrington's office to see if they faxed the letter. Farrington's secretary said that she sent it and had retained a copy of the transmittal sheet. The Respondent determined that an error had been made. Specifically, the fax had been sent to the wrong fax number. It was faxed to a number ending in "7662" instead of the correct number ending in "7652."

The Respondent presented a fax transmittal sheet as evidence (see Respondent's Exhibit [RX] A). This transmittal, dated "07/19," indicated that a fax was sent to (718) 760-7662, with a "busy" result. The Respondent asserted that the secretary from Farrington's office "changed the numbers." RX B was a fax transmittal sheet dated "07/23," indicating that a fax was sent to (718) 760-7652, with an "OK" result. A handwritten note on RX A reads, "This was attempt on 7/19/07, fax # was dialed wrong. 2nd attempt done on 7/23/07." The note is initialed "EM" over the stamp of Drs. Ann and Jules Gottlieb of the [REDACTED] on

██████████ in ██████████ The Respondent testified that Farrington was a physician in this group.

The Respondent acknowledged that she was out of residence from July 20 to July 23, 2007, as she had gone to Atlanta for vacation and her sister's wedding ceremony.

On cross-examination, the Respondent agreed that she was initially placed on sick on July 6, 2007, and learned on July 17, 2007, through Clerical Associate Ramirez that her return to duty date was scheduled for Friday, July 27, 2007.

The Respondent said that she first became aware of her sister's wedding ceremony in June and submitted a request for two Individual Vacation Days (IVDs). Her sister was married on Saturday, July 21, 2007. Associated with that time period, the Respondent's regular days off (RDOs) were July 19 and 20, 2007, which would afford her five days off when combined with the requested IVDs. The Respondent agreed that being carried sick through July 27, 2007, would not have permitted her to use her RDOs or to leave the state, but she added that she believed she was returned to duty on July 19, 2007. Had she been returned to full duty, the Respondent reiterated that she would have been RDO on July 19 and 20, had one vacation day July 21, a chart day July 22, and an additional vacation day July 23, 2007.

The Respondent acknowledged that she spoke to Ramirez on July 17, 2007, and requested a pass for a specific period of time on July 21, 2007, the day that her sister was getting married. The Respondent was granted the pass.

The Respondent also acknowledged that she spoke with Police Officer Gibson from the Medical Division on July 19, 2007, who informed her that she had to obtain a letter from her personal physician and have it faxed to the Medical Division. She denied that Gibson told her that the letter was subject to review by a Department physician and claimed that she was told she

would be returned to duty so long as the letter was faxed to the Medical Division from her physician.

The Respondent testified that her doctor, Farrington, is not associated with the Department and that she is a private physician. The Respondent further acknowledged that the Department's physicians control her return to duty. When asked whether there was not a guarantee that she would be returned to full duty even if the Medical Division received the fax, the Respondent stated that it was possible, but "my doctor has precedence over my condition," and that if her doctor approved it, "it's usually approved by the district surgeon."

The Respondent acknowledged that Gibson told her that the fax had not been received. The Respondent told Gibson that she would have it "expedited," but admitted that she did not call back to confirm receipt of the fax. She did not have a recollection of Gibson saying, on July 19, 2007, that Dr. Lichtenstein of the Medical Division needed to review the note. The Respondent admitted that her last contact with Gibson before flying to Atlanta was that the fax had not yet been received.

The Respondent acknowledged that she learned from her husband that the Medical Division was looking for her. Her husband did not go on the trip to Atlanta. The Respondent returned from her trip on the morning of Monday, July 23, 2007.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974). The Respondent was appointed to the Department on August 30, 1993. Information from her personnel folder that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Respondent has been found Guilty, after pleading Guilty and testifying in mitigation of the penalty, of wrongfully being absent from her residence while on sick leave. The Department argued that a penalty of twenty vacation days should be imposed. The Respondent's counsel suggested a penalty of re-instruction.

There is no evidence that the Respondent was abusing her sick leave. In fact, all of the evidence points to the Respondent's attempt to return to work early from sick leave, and to use her RDOs, vacation time and chart days to leave her residence to go to a wedding in Atlanta. On the other hand, the Respondent was supposed to follow up with the Medical Division to make sure the required paperwork had gone through. As the result of a misdialed fax number, the paperwork did not make it to the Medical Division on time.

This case is distinguishable from other matters involving sick leave. For example, in *Disciplinary Case No. 81783/06*, a 6-year member with no prior disciplinary record, after pleading guilty and testifying in mitigation of the penalty, forfeited 10 vacation days for twice being absent from his residence. He went on administrative sick leave – i.e., he called in sick to work – after having attended a class those days pre-tour for his paramedic license. When he returned home from the class, he arrived after his tour had started, thus ending up out of residence while sick. In *Disciplinary Case No. 77300/01*, a 13-year Detective with no prior

record forfeited 20 vacation days, after plea and mitigation, for being out of residence while on pregnancy sick report on five occasions, each time to take law school final exams.

In the instant case, the Respondent did not falsely call in sick. Nor did she completely ignore the Patrol Guide's requirements regarding permission to leave her residence while sick. Rather, she attempted to comply with the rules and have her obstetrician send the appropriate paperwork to the Medical Division. Her sick leave history does not reveal any chronic sick incidents (cf. *Disciplinary Case No. 81931/06* and see Confidential Memorandum, infra). Under these mitigating circumstances, a penalty of 5 vacation days is appropriate.

Respectfully submitted,



David S. Weisel
Assistant Deputy Commissioner – Trials

